MILITARY ENGINEER SERVICES
NOTICE INVITING TENDER (NIT)

1. A TENDER IS INVITED FOR THE WORK AS MENTIONED IN Appendix 'A' to this (NOTICE INVITING TENDER (NIT))

2. The work is estimated to cost as indicated in aforesaid Appendix 'A'. This estimate, however, is not a guarantee and is merely given as rough guide and if the work cost more or less, a tenderer/bidder will have no claim on that account.

3. The work to be completed within the period as indicated in aforesaid Appendix 'A' in accordance with the phasing, if any, indicated in the tender from the date of handing over site, which will be on or about two weeks after the date of Acceptance of tender.

4. Contractors whose names are on the MES approved list and within whose financial category the estimated amount would fall and un-enlisted contractors may submit tender/bid subject to other criteria mentioned in Appendix A. However in case of term contracts, enlisted contractors of Class SS to E may submit tender. Not more than one tender shall be submitted/uploaded by one contractor/ firm. Under no circumstances will a father and his son(s) or other close relations who have business dealing with one another be allowed to tender/bid for the same contract as separate competitors. Two firms shall be deemed to have business dealing if any of the partners/proprietor/director is common among both of them. A breach of this condition will render the tenders/bids of both the parties liable for rejection.

5. **PERFORMANCE SECURITY**: - The tenderers shall note that the successful tenderer is required to lodge **'Performance Security Deposit'** for an amount equivalent to **5% of the Contract Sum/ lumpsum** within 28 Days of receipt of letter of Acceptance in the form of **'Bank Guarantee' or FDRor any other Government Instruments** in favour of the **Accepting Officer** in terms of Condition – 19 of IAFW - 2249, General Conditions of Contracts. The Performance Security shall be valid till expiry of Defect Liability Period as stipulated here-in-after PLUS two months.

6. The office of HQ CHIEF ENGINEER (AF), SHILLONG ZONE, MILITARY ENGINEER SERVICES, ELEPHANT FALLS CAMP, PO : NONGLYER, SHILLONG – 793009 will be the Accepting Officer here-in-after referred to as such for purpose of the contract.

7. Not more than one tender/bid shall be submitted/uploaded by one bidder firm. Under no circumstances will a father and his son(s) or other close relations who have business dealing with one another be allowed to tender/bid for the same tender as separate competitors. A breach of this condition will render the tenders/bids of both the parties liable for rejection.

8. The Technical Bid and Financial Bid (Cover-1 and Cover-2) shall be uploaded by the contractor on or before the date & time mentioned in **NIT**. A scanned copy of DD with enlistment details and other documents as specified in Appendix A shall be uploaded as Cover-1 (Technical bid) of the tender on e-tendering portal. DD is refundable in case the contractor is not considered eligible in technical evaluation of Cover 1 resulting in non-opening of Cover1. The applicant contractor shall bear the cost of bank charges for procuring and encashing the DD including revalidation of DDs and shall not have any claim from Government whatsoever on this account.

9. Tender form and conditions of contract and other necessary documents shall be available on website defproc.gov.in for download and shall form part of contract agreement in case the tender/bid is accepted.

10. In case of MES enlisted contractor who has not executed the Standing Security Bond and un enlisted contractor, the Cover-I shall be accompanied by Earnest Money for the amount mentioned in Appendix 'A' in the form of deposit at call receipt in favour of concerned CCE/GE/GE (I)/AGE (I) (see Appendix 'A') by a Scheduled Bank or in received treasury Challan the amount being credited to the revenue deposit of the concerned CCE/GE/GE(I)/AGE(I) (see Appendix 'A'). The CCE/GE/GE (I)/AGE (I) will return the Earnest Money, wherever applicable, to all unsuccessful tenderers/bidders by endorsing an authority on the deposit at call receipt for it's refund, on receipt of intimation from the Accepting Officer to do that..

11. In case of successful contractor i e the lowest contractor having submitted EMD, he shall have the option of converting the EMD instrument into part of the Performance Security to be deposited by him within 28 days from the receipt of intimation of acceptance of tender from Accepting Officer

12. Sample of materials and stores to be supplied by the contractor will also be available for inspection by the bidder at the office of concerned GE/GE (I)/AGE (I)/Project Manager during working hours. The bidder is advised to visit the site of work by making prior appointment with GE/GE (I)/AGE (I)/CCE/Project Manager, who is the Executing Agency of the work (see Appendix 'A'). The bidder shall be deemed to have full knowledge of all relevant documents, samples, site etc whether he has inspected them or not.

13. Any bid which proposes any alteration to any of the conditions laid down or proposes any other new condition whatsoever, is liable to be rejected.

14. The uploading of bid by a bidder implies that bidder has read this notice and the conditions of contract and has made himself aware of the scope and specification of work to be done and of the conditions and rates at which stores (as applicable) etc will be issued to him and local conditions and other factors having bearing on the execution of the work.

15. The bidder must be in possession of a copy of the MES Schedule (SSR) (Part-I & Part-II of latest edition) including amendments and errata thereto.

16. Accepting Officer does not bind himself to accept the lowest or any tender/bid or to give any reason for not doing so.

17. The Accepting Officer reserves the right to accept a tender submitted by a Public Undertaking/Small & Medium Enterprises (SMEs), giving a price preference/purchase preference over other tender(s)/bids which may be lower, as are admissible under the Government Policy. No claim for any compensation or otherwise shall be admissible for such tenderer/bidder whose tender/bid is rejected.

18. Court of the place from where tender has been issued shall alone have jurisdiction to decide any dispute out of or in respect of this tender. After acceptance of tender, Condition 72 (Jurisdiction of Courts) of IAFW-2249 shall be applicable.

19. This Notice Inviting Tender (NIT) including Appendix 'A' shall form part of the contract.

SIGNATURE OF CONTRACTOR **AAD(CONTRACTS)**
DATED:_____ **FOR ACCEPTING OFFICER**

APPENDIX 'A' TO NOTICE INVITING TENDER (NIT)

1.	Name of work	:	**PROVN OF CENTRAL SEWAGE TREATMENT PLANT AT AF STN SALUA**
2.	Estimated Cost	:	**Rs. 659.00 Lakhs** (At Par Market)
3.	Period of completion	:	Phase I- 365days Phase II- 22 Months
4.	Cost of tender documents	:	Rs.3000/- in the shape of DD/Bankers cheque from any schedule Bank in favour **GE (P) (AF) Kalaikunda** and payable at **Kalaikunda** (Note: In case of retendering, the contractor who had quoted in the previous call is not required to submit the cost of tender.)
5.	Website/portal address		www.defproc.gov.in
6.	Type of contract	:	The Lump sum tender shall be based on drawing and specifications as per IAFW: 2249 & GCC (IAFW: 2159) with Schedule 'A' (list of items of work) to be priced by contractor/ pre priced by MES. The contractor is required to quote the lump sum amounts for parts of Schedule 'A' and quote rates against items of other parts of Schedule 'A'.
7.	Timeline Details :		
	(a) Bid submission start date		Refer critical dates on the website.
	(b) Last date of bid submission		
	(c) Date of bid opening		
8.	ELIGIBILITY CRITERIA		
	(A) For all contractors (enlisted and un-enisted)		(i) All Contractors (enlisted or un–enlisted in MES) meet the enlistment criteria of '**A**' Class and satisfactorily completed requisite value of works as per **Prequalification criteria (PQC) as in Note No. 1** here-in-after with Central/State Government/ Central/ State PSUs/ AWHO/ AFNHB/ CGEWHO / DGMAP, annual turnover, bank solvency, working capital and other requirements given in Para 1.4 & 1.5 of Section 1 of MES Manual of Contracts 2020 as available in all MES formations as well as MES website (www.mes.gov.in). (ii) Not carrying adverse remarks in Work Load Report (WLR) or any other similar report circulated by any competent authority, if already working in MES. (iii) Not suspended/debarred/blacklisted (either permanently or temporarily) from participating in any bid or for business dealings by any Central/State Government Department or any Central/State Government PSU or any Autonomous Body under Central/State Government or any Local Body as on the bid submission end date. (iv) Details of works completed and under progress in MES be submitted in the following format :-

Srl No.	CA No. & Name of Work	Value of CA	Date of Commencement	Date of Completion	Extended Date of Completion

(v) Un-enlisted contractor who have secured two works in MES should get themselves registered in the appropriate designated class with any Registering Authority, else the film will not be eligible for participation in the tender unless until the firm is enlisted with the MES.

APPENDIX 'A' TO NOTICE INVITING TENDER (CONTD)

9.	Tender issuing and Accepting Officer		**HQ CHIEF ENGINEER (AF), SHILLONG ZONE, MILITARY ENGINEER SERVICES, ELEPHANT FALLS CAMP, PO : NONGLYER, SHILLONG – 793009**
10.	Executing agency		**GE (P) (AF) Kalaikunda**
11.	Earnest money		**Rs. 6,54,500**/- in favour of **GE (P) (AF) Kalaikunda** in the form of Deposit at call receipt, FDR not acceptable.
12.	Performance Security		The tenderers shall note that the successful tenderer is required to lodge '**Performance Security Deposit**' for an amount equivalent to **5% of the Contract Sum/ lumpsum** within 28 Days of receipt of letter of Acceptance in the form of '**Bank Guarantee' or FDR or any other Government Instruments** in favour of the Accepting Officer in terms of Condition – 19 of IAFW - 2249, General Conditions of Contracts. The Performance Security shall be valid till the expiry of Defect Liability Period as stipulated here-in-after PLUS two months. In case the tenderer fails to deposit the Performance Security within the stipulated period, the award of work shall be cancelled and Earnest Money deposited by him shall be forfeited. In case of MES enlisted contractors, the amount equal to the Earnest money stipulated in the Notice of Tender, shall be notified to the tenderer for depositing the amount through MRO. Issue of tender to such tenderer shall remain suspended till the aforesaid amount equal to Earnest Money is deposited in Government Treasury. The contractor shall not be entitled for any compensation whatsoever on this account. The Work Order for commencing the work shall be placed by the GE only after receipt of above Performance Security by the Accepting Officer within the stipulated time period.
13.	Integrity Pact		(a) Scan copy of the Integrity Pact duly signed by the Accepting Officer is enclosed as per Annexure – II to Appendix – 'A' to Notice Inviting Tender (NIT) here-in-after. Scanned copy of Integrity pact duly signed on each page by the bidder(s) shall be uploaded as part of technical bid (Cover-1) and original Integrity Pact duly signed on each page shall be forwarded by post along with demand draft. Bidder(s) who do not upload scanned copy of Integrity Pact duly signed, shall be intimated of the same alongwith intimation of other such deficient documents, through option of 'Short Fall Documents' (in e-tendering portal) before 'T' Bid evaluation. Any bidder who fails to forward the copy of IP duly signed even after this communication, shall be disqualified in the Technical Bid (Cover-1). (b) Integrity pact is deemed as part of contract and both the parties are bound by its provisions.

APPENDIX 'A' TO NOTICE INVITING TENDER (CONTD…)

NOTES:-

1. **PRE-QUALIFICATION CRITERIA (PQC) :-**

(a) Average Annual financial turnover during the last three years, ending 31st March 2023, shall be at least 90% of the estimated cost.

(b) Experience of having successfully completed similar works during last seven years, ending last day of month previous to the month of bid submission start date, should be either of the following :

Three similar completed works costing not less than the amount equal to 40% of the estimated cost.

OR

Two similar completed works costing not less than the amount equal to 50% of the estimated cost.

OR

One similar completed work costing not less than the amount equal to 80% of the estimated cost

(c) 'Similar works' means construction of sewage treatment plant with any existing technology & connected civil engineering work.

(d) For the purpose of value of completed works, the value of previously completed works shall be enhanced @ 5% per year to bring them at par with present cost.(Only completed numbers of years shal be considered & part/fraction of year shall not be considered)

(e) For purpose of evaluation, if O&M of the work is in progress, the value of capital expenditure (CAPEX) i.e value of main capital work of STP and the date of completion of the corresponding work shall be considered. However, if the O&M of the work is completed, then the entire value of work & the date of completion of the entire work shall be considered for the purpose of evaluation.

(f) **Working capital** not less than **Rs 30.00 Lakh** from the scheduled bank as certified by Bankers which should not be older than 06 months as on **the preceding month of DRT.**

(g) **Bank Solvency upto Rs. 2.00 Crore** or financially sound for engagement upto **Rs 7.50** Crore from the scheduled bank as certified by the bankers, which should not be older than six months as on **the preceding month of DRT.**

2. In Case after opening of Cover 1, the number of MES enlisted contractors of eligible class as well as eligible un-enlisted contractors, if any, fulfilling the other eligibility criteria given in NIT is less than 07 (Seven), applications in respect of contractors one class or two classes (in case of remote and difficult areas to be decided as per list circulated by CE Command/ ADG) below the eligible class shall also be considered subject to fulfillment of other eligibility criteria given in the NIT. Therefore MES contractor's one class below (two classes below in case of remote and difficult areas) may also bid for the tender. Such contractors (Contractors of one/ two classes below the eligible class) shall not be considered in case their present residual work in hand is more than FIVE TIMES their present tendering limit. However in case such Contractors fulfill the criteria of up-gradation to the stipulated eligible class bases on past experience of completed works (individual work experience and/ or average annual turnover, as applicable) and financial soundness (solvency/ financial soundness and working capital), the ceiling of present residual work will not apply and they will be considered for issue of tender. Such bidders shall upload in their Cover 1 bid details of works in hand showing names of work, names of Accepting Officers, Contract amounts, dates of commencement and completion (stipulated) and progress as on bid submission date. Such contractors, if claim to fulfill the criteria of up-gradation shall also upload the requisite information/ documents in support of up-gradation. These details shall be verified by the Tender Issuing Authority from concerned formations in case bids of such contractors are considered for evaluation.

APPENDIX 'A' TO NOTICE INVITING TENDER (CONTD…..)

3. In case after opening of Cover 1, the number of MES enlisted contractors of eligible class as well as unenlisted contractor (if any), fulfilling the other eligibility criteria given in NIT, are 7 (seven) or more, applications of only those one class below the eligible class bidders shall be considered, who have previously completed similar works satisfactorily and are meeting the criteria of upgradation in respect of past experience of completed works (individual work experience and/ or average annual turnover as applicable) and financial soundness (solvency/ financial soundness and working capital) as per details given in Manual on Contracts provided the value of tendered work is less than twice the tendering limit of such contractor. Therefore such contractors may upload the requisite information/ documents in Cover-I.

4. Un-enlisted contractor shall be considered provided he meets the criteria. Foreign firms shall not be eligible for this tender. However Indian Firms having foreign national/ Indian National staying abroad / Indian national having take foreign citizenship, as director (s) Shall be considered subject to security clearance from the concerned authorities.

5. All Contractors (enlisted or un-enlisted) will upload following documents in Cover-I for checking eligibility:-

(a) Application for the tender on Tenderer's letter Head.

(b) Enlistment letter issued by the Registering Authority duly renewed for cycle period in vogue. **(applicable for Enlisted Contractors**)

(c) Affidavit for constitution of the firm along with Partnership Deed/ Memorandum and Articles of Association and copy of Registration of firm with the Registrar of Firms / Company **(applicable for Un-enlisted Contractors**)

(d) Scanned copy of DD/Bankers Cheque toward cost of tender and EMD instrument in case SSD bond is not signed at the time of registration.

(e) GST registration.

(f) Documents in support of **Pre-Qualification Criteria,** which shall include, inter alia the following :-

(i) Affidavit on non-judicial stamp paper of Rs 100/- (minimum) in the form of hard copy declaring their turnover alongwith **Copy of turnover certificate** from Chartered Accountant (CA) for last three Financial Years (Notarized copy of relevant pages of audited balance sheet of those FYs) showing the turn over (gross receipts) duly bearing the UDIN alongwith copies of relevant pages of audited balance sheet.

(ii) **Copies of completion certificate in respect of three highest valued works completed** in **last seven years**. This will be in tabular form giving name of work, Accepting Officer's/ Client's details, viz, Address, Telephone, Fax No, E-mail ID etc, date of acceptance of tender/offer and actual date of completion. This shall be duly signed by Proprietor / all Partners / Authorized Director of Pvt / Public Ltd, as applicable. It should indicate whether extension was granted or compensation was levied. Attested copy of acceptance letter/order and completion certificate shall be enclosed for each work. In case performance report has been given by the client, same shall also be submitted duly attested.

(iii) Copies of extracted pages of BOQ of the qualifying works.

(g) Solvency Certificate and Working Capital Certificate issued by scheduled bank as per format given in MES Manual On Contracts 2020.

(h) Copy of Police Verification Report/Police Clearance Certificate/Character Certificate from the Police Authority of the area where the registered office of the firm is located / notarized copy of the valid passport of Proprietor/each Partner/ each Director.

(j) Documents required for enlistment in MES for SS class as per Para 1.5 of Section-1 MES Manual on Contracts 2020.

(k) Any other documents required as mentioned in the Appendix or Annexures of this Appendix.

APPENDIX 'A' TO NOTICE INVITING TENDER (CONTD…..)

6. Tender not accompanied by scanned copies of requisite DD /Bankers Cheque towards cost of tender and earnest money (as applicable) in Cover I shall not be considered for validation of 'T' bid and their Financial Bids will not be opened.

7. Contractors should ensure that their original physical DDs and Earnest Money Deposit (EMD instruments (as applicable) reach the office of Accepting Officer within 05 (five) days of bid submission end date (*The number of days to be mentioned shall be as decided by the Accepting Officers, but it shall not be less than 5 days) failing which following action shall be taken.

(a) In case of tenders form an enlisted contractor of MES, where scanned copies of requisite DD/Bankers Cheque towards cost of tender have been uploaded in Cover 1 but physical copies are not received within the stipulated period, their financial bids (Cover 2) will be opened. However non-submission of physical copies of cost of tender shall be considered as willful negligence of the tenderer with ulterior motives and such tender shall be banned from bidding for a period of six months commencing from the date of opening of Financial bid (Cover 2).

(b) In case of tenders from unenlisted contractor, where scanned copies of requisite DD/Bankers Cheque towards cost of tender have been uploaded in Cover 1 but physical copies are not received within the stipulated period, their financial bids (Cover2) will not be opened. Name of such contractors along with complete address shall be circulated for not opening of their bids for a period of six months commencing from the date opening of Financial bid (Cover 2).

(c) In case of tender form enlisted and unenlisted contractors, where scanned copies of instruments of Earnest Money Deposit (as applicable) have been uploaded in Cover 1 but the same are not received in physical form within stipulated period, such tenders shall not qualify for opening of financial bid (Cover 2).

8. Contractor will not be allowed to execute the work by subletting or through power of attorney to a third party/another firm on his behalf. However a contractor can execute the work through power of attorney to sons/daughters /spouse of Proprietor/Partner/Director and firm's own employees, director, project manager **provided they are not having a separate enlisted firm in MES in their name as Proprietor/Partner/Director.**

9. After opening of Cover I and during its technical evaluation, in case any deficiency is notice in the documents required to be uploaded by the tenderers as per NIT, a communication in the form of e-mail/SMS/Speed Post etc shall be sent to the contractor to rectify the deficiency within a period of seven days from date of communication failing which their financial bid (Cover 2) shall not be opened and contractor shall not any claim on the same.

10. Invitation for e-tender does not constitute any guarantee for validation of Technical bid and subsequent opening of financial bid of any applicant/bidder merely by virtue of enclosing DD. Accepting Officer reserves the right to reject the Technical bid and not to open the financial bid of any applicant bidder. Technical bid validation shall be decided by the Accepting Officer based on eligibility of the firm as per criteria given in this Appendix. Tender /bidders will be informed regarding non-validation of his Technical bid assigning reason therefore through tender evaluation report which shall be uploaded on the website. Such tenderer, if desires, may appeal to the next higher Engineer Authority (NHEA) viz **HQ ADG NEI Guwahati** on email id **adgnei-mes@gov.in** with copy of the Accepting Officer on email before the scheduled date of opening of Cover 2. NHEA Shall decide the matter within a period of seven working days from the date of receipt of appeal. The decision of NHEA shall be final and binding. The tenderer bidder shall not be entitled for any compensation whatsoever for rejection of his bid.

11. In case an unenlisted contractor is already executing work in MES, he shall not be considered eligible for the subject tender if the bidder is already having secured two works in MES. For this purpose, details of the works being executed by such a contractor shall be uploaded in the cover 1 of the bid and shall be checked /verified by the Accepting Officer.

12. In case the BOQ is revised through the corrigendum and the bidder has failed to quote on revised BOQ (i.e he has quoted on pre revised BOQ), such bid shall be treated as willful negligence by the bidder and his quotation shall be considered non-bonafide. In such cases the lowest tender shall be determined from amongst the valid bonafied bids only. Accepting may decide whether to re-tender or consider the lowest bonafide tender for acceptance.

APPENDIX 'A' TO NOTICE INVITING TENDER (CONTD…..)

13. Revoking the offer or revising the rates upward or offering voluntary reduction by the lowest tenderer after opening of Cover 2 shall be considered as a wilful default. For this default a penalty of an amount equal to Earnest Money shall be levied. In case of an unenlisted tenderer, Earnest Money deposited by him shall be forfeited. In case of MES enlisted tenderer having deposited the Standing Security Bond, an amount to the earnest money stipulated in the NIT, shall be notified to the tenderer for depositing through MRO and consideration of such tenderer in tender evaluation for future works shall remain suspended till the aforementioned amount is deposited in the Government Treasury. No other disciplinary/administrative action shall be taken against such tenderers. In such a situation, the next lowest offer shall not be considered for acceptance. Instead, retendering shall be restored to in a transparent and fair manner and the defaulting tenderer and his related firm if any, shall not be eligible for this tender in second call or subsequent calls.

14. Tender to related firms shall not be issued simultaneously. Firms shall be termed as related if Proprietor/one or more Partners/Directors are common. Decision of Accepting Officer on issue/deny the tender to any one of the related forms shall be final and binding.

SIGNATURE OF CONTRACTOR **AAD(CONTRACTS)**
DATED:_____ **FOR ACCEPTING OFFICER**

ANNEXURE-II TO NOTICE INVITING TENDER(NIT)

INTEGRITY PACT

GENERAL

1. Whereas **THE PRESIDENT OF INDIA**, represented by **Chief Engineer (AF) Shillong Zone** here-in-after referred to as Principal / Owner and the first part, has floated the Tender and intends to award, under laid down organizational procedure, contract for **PROVISION OF CENTRAL SEWAGE TREATMENT PLANT AT AF STN SALUA** here-in-after referred to as works / Services and M/S_____ represented by, _____(which term unless expressly indicated by the contract, shall be deemed to include its successors and its assignees), here-in-after referred to as the Bidder/Contractor and the second part is willing to carryout the works / services.

2. Whereas the Bidder is a Proprietorship Concern / Partnership Firm / Limited Liability Firm / Private Limited Company / Limited Company / Joint Venture constituted in accordance with the relevant law in the matter and the Principal / Owner is Chief Engineer (CE) performing its functions on behalf of the President of India.

OBJECTIVES

3. Now, therefore, the Principal / Owner and the Bidder agree to enter into this pre-contract agreement, referred to as INTEGRITY PACT (IP), to avoid all forms of corruption by following a system that is fair, transparent and free from any influence/prejudiced dealings prior to, during and subsequent to the conclusion of the contract to be entered into with a view to:-

   3.1. Enabling the Principal / Owner to get the desired works / services at a competitive price in conformity with the defined specifications of the Services by avoiding high cost and the distortionary impact of corruption on public procurement.

   3.2. Enabling Bidders to abstain from bribing or any corrupt practice in order to secure the contract by providing assurance to them that their competitors will also refrain from bribing and other corrupt practices and the Principal / Owner will commit to prevent corruption, in any form, by their officials by following transparent procedures.

COMMITMENTS OF THE PRINCIPAL/ OWNER

4. The Principal / Owner commits itself to the following:-

   4.1. The Principal / Owner undertakes that, no official of the Principal / Owner, connected directly or indirectly with the contract will demand, take a promise for or accept, directly or through intermediaries, any bribe, consideration, gift, reward, favour or any material or immaterial benefit or any other advantage from the Bidder, either for themselves or for any person, organisation or third party related to the contract; in exchange for an advantage; in the bidding process, bid evaluation, contracting or implementation process related to the Contract.

   4.2. The Principal / Owner will, during the pre-contract stage, treat all Bidders alike and will provide to all Bidders the same information and will not provide any such information to any particular Bidder which could afford an advantage to that particular Bidder in comparison to other Bidders.

   4.3. All the officials of the Principal / Owner will report to the appropriate Government office any attempted or completed breach(s) of the above commitments as well as any substantial suspicion of such a breach.

INTEGRITY PACT (CONTD…)

5. In case of any such preceding misconduct on the part of such official(s) is reported by the Bidder to the Principal / Owner willful and verifiable facts and the same is prima facie found to be correct by the Principal / Owner, necessary disciplinary proceedings, or any other action as deemed fit, including criminal proceedings may be initiated by the Principal / Owner and such a person shall be debarred from further dealing related to the tender / contract process. In such a case while an Inquiry is being conducted by the Principal / Owner the tender process / proceedings under the contract would not be stalled.

COMMITMENTS OF BIDDERS

6. The Bidder commits himself to take all measures necessary to prevent corrupt practices, unfair means and illegal activities during any stage of his bid or during any pre-contract or post-contract stage in order to secure the contract or in furtherance to secure it and in particular commits himself to the following-.

6.1. Bidder will not offer, directly or through intermediaries, any bribe, gift, consideration, reward, favour any material or non-material benefit or other advantage, commission, fee, brokerage or inducement to any official of the Principal / Owner, connected directly or indirectly with the bidding process, or to any person, organization or third party related to the contract in exchange for any advantage in the bidding, evaluation, contracting and implementation of the Contract.

6.2. The Bidder further undertakes that he has not given, offered or promised to give, directly or indirectly any bribe, gift, consideration, reward, favour any material or non-material benefits or other advantage, commission, fees, brokerage or inducement to any official of the Principal / Owner or otherwise in procuring the Contract or forbearing to do or having done any act in relation to the obtaining or execution of the contract or any other Contract with the Government for showing or forbearing to show favour or disfavour to any person in relation to the Contract or any other Contract with the Government.

6.3. The Bidder will not collude with other parties interested in the contract to impair the transparency, fairness and progress of the bidding process, bid evaluation, contracting and implementation of the contract.

6.4. The Bidder will not accept any advantage in exchange for any corrupt practice, unfair means and illegal activities.

6.5. The Bidder would not enter into conditional contract with any Agent(s), broker(s) or any other intermediaries wherein payment is made or penalty is levied, directly or indirectly, on success or failure of the award of the contract.

6.6. The Bidder commits to refrain from giving any complaint directly or through any other manner without supporting it with full and verifiable facts. Complaint will be processed as per **Guidelines for Handling of Complaints** in vogue. In case the complaint is found to be vexatious, frivolous or malicious in nature, it would be construed as a violation of Integrity pact.

7. PREVIOUS TRANSGRESSION

7.1. The Bidder declares that no previous transgression occurred in the last three years immediately before signing of this Integrity Pact with any other company in respect of any corrupt practices envisaged hereunder or with any Public Sector Enterprise in India or any Government Department in India.

7.2. If the Bidder makes incorrect statement on this subject, Bidder can be disqualified from tender process or the contract and if already awarded, same can be terminated for such reason.

INTEGRITY PACT (CONTD…)

8. COMPANY CODE OF CONDUCT

8.1. Bidders are advised to have a company code of conduct (clearly rejecting the use of bribes and other unethical behaviour) and a compliance program for the implementation of the code of conduct throughout the country.

9. SANCTION FOR VIOLATION

9.1. Any breach of the aforesaid provisions by the Bidder or any one employed by him or acting on his behalf (whether with or without the knowledge of the Bidder) or the commission of any offence by the Bidder or any one employed by him or acting on his behalf, as defined in Chapter IX of the Indian Penal Code, 1860 or the Prevention of Corruption Act 1988 or any other act enacted for the prevention of corruption shall entitle the Principal / Owner to take all or any one of the following actions, wherever required:-

(i) Technical bid of the Bidder will not be opened. Bidder will not be entitled to or given any compensation. However, the proceedings with the other Bidder(s) would continue.

(ii) Financial bid of the Bidder will not be opened. Bidder will not be entitled to or given any compensation. However, the proceedings with the other Bidder(s) would continue.

(iii) The Earnest Money Deposit shall stand forfeited either fully or partially, as decided by the Principal / Owner, in case contract is not awarded to the Bidder and the Principal / Owner shall not be required to assign any reason therefor. For enlisted contractors an amount less than or equal to Earnest Money Deposit as decided by the Principal/ Owner shall be deducted from any amount held with the Department / any payment due.

(iv) To immediately cancel the contract, if already concluded / awarded without any compensation to the Bidder.

(v) To encash the Performance Security furnished by the Bidder.

(vi) To cancel all or any other Contract(s) with the Bidder.

(vii) To temporarily suspend or temporarily debar / permanently debar the bidder as per the extant policy.

(viii) If adequate amount is not available in the present tender / contract, the deficient amount can be recovered from any outstanding payment due to the Bidder from the Principal / Owner in connection with any other contract for any other works/ services.

(ix) If the Bidder or any employee of the Bidder or any person acting on behalf of the Bidder, either directly or indirectly, is closely related to any of the officers of the Principal / Owner, or alternatively if any close relative of an officer of the Principal / Owner has financial interest/stake in the Bidder's firm, the same shall be disclosed by the Bidder at the time of submission of tender. Any failure to disclose the interest involved shall entitle the Principal / Owner to debar the Bidder from the bid process or rescind the contract without payment of any compensation to the Bidder. The term 'close relative' for this purpose would mean spouse whether residing with the Government servant or not, but does not include a spouse separated from the Government servant by a decree or order of a competent Court; son or daughter or step son or step daughter and wholly dependent upon Government servant, but does not include a child or step child who is no longer in any way dependent upon the Government servant or of whose custody the Government servant has been deprived of by or under any law; any other person related, whether by blood or marriage, to the Govt servant or to the Government servant's wife or husband and wholly dependent upon Government servant.

INTEGRITY PACT (CONTD…)

(x) The Bidder shall not lend to or borrow any money from or enter into any monetary dealings or transactions, directly or indirectly, with any employee of the Principal / Owner and if he does so, the Principal / Owner shall be entitled forthwith to cancel the contract and all other contracts with the Bidder.

9.2. The decision of the Principal / Owner to the effect that a breach of the provisions of this Integrity Pact has been committed by the Bidder shall be final and binding on the Bidder. However, the Bidder can approach the Independent External Monitor(s) (IEMs) appointed for the purposes of this Pact.

10. INDEPENDENT EXTERNAL MONITORS (IEMS)

10.1. MOD has appointed the following Independent External Monitors for this pact in consultation with the Central Vigilance Commission:-

Sl No	Name of IEM	e-mail id
1	Shri Sudhir Bhargava, IAS (Retd)	bhargav4@nic.in
2	Shri Vikram Srivastava, IPS (Retd)	vikramsrivastava1973@gmail.com

10.2. Details of Nodal officer nominated by E-in-C's Branch are as follows:-

Srl No.	Name of the Nodal Officer of MES	E-mail ID	Mobile No.
(a)	Shri Bhavesh Gupta Director (Contracts)	dircont1einc-mes@nic.in	Tel No. (Office); 011-230192220 Mobile No. - 9868145022

10.3. In case of any complaint with regard to violation of Integrity Pact, either party can approach IEMs with copy to the Nodal Officer and the other party. If any such complaint from bidder is received by the Principal / Owner, the Principal / Owner shall refer the complaint to the Independent External Monitors for their recommendations / inquiry report.

10.4. If the IEMs need to peruse the relevant records of the Principal/ Owner and/or of the Bidder / Contractor in connection with the complaint sent to them, the Principal/ Owner and/ or the Bidder/ Contractor shall make arrangement for such perusal of records by the IEMs as demanded by them including unrestricted and unconditional access to the project documentation and minutes of meeting. If records / documents Of Sub-Contractor(s) are also required to be perused by the IEMs, the Bidder shall make arrangement for such perusal of records by the IEMs as demanded by them, IEMs are under obligation to treat the information and documents of the Principal/Owner and Bidder/ contractor/sub-contractors with confidentiality.

10.5. The task of the IEMs, is to review independently and objectively, any complaint received with regard to violation Integrity Pact and offer recommendations or carry out inquiry as deemed fit. The IEMs are not subject to any instructions by the representatives of the parties and shall perform their functions neutrally and independently. The report of inquiry, if any, made by the IEMs shall be submitted to either of the following for a final and appropriate decision in the matter keeping in view the provision of this Pact:-

(a) Engineer-in-Chief in normal cases

(b) CVO(MES & BRO) /MoD in cases involving vigilance angle

INTEGRITY PACT (CONTD…)

11. EXAMINATION OF BOOKS OF ACCOUNTS

In case of any allegation of violation of any provisions of this Integrity Pact or payment of commission, the Principal / Owner or its agencies shall be entitled to examine the Books of Account of the Bidder and the Bidder shall provide necessary information of the relevant financial documents in English and shall extend all possible help for the purpose of such examination.

12. LAW AND PLACE OF JURISDICTION

This Pact is subject to Indian Law. The place of performance and jurisdiction is the seat of the Principal / Owner.

13. OTHER LEGAL ACTIONS

The actions stipulated in this Integrity pact are without prejudice to any other legal action that may follow in accordance with the provisions of the extant law in force relating to any civil or criminal proceedings.

14. SIGNING OF INTEGRITY PACT ON BEHALF OF BIDDER

(a) Proprietorship Concern — The Integrity Pact must be signed by the proprietor or by an authorised signatory holding power of attorney signed by the proprietor.

(b) Partnership firm - The Integrity Pact must be signed by all partners or by one or more partner holding power of attorney signed by all partners.

(c) Limited Liability firm - The Integrity Pact must be signed by all partners or by one or more partner holding power of attorney signed by all partners.

(d) Private Limited / Limited Company - The Integrity Pact must be signed by a representative duly authorized by Board resolution.

(e) Joint Venture - The Integrity Pact must be signed by all partners and members to Joint Venture or by one or more partner holding power of attorney signed by all partners and members to the Joint Venture.

15. VALIDITY

15.1. The validity of this Integrity Pact shall be from date of its signing. It expires for the Contractor after the final payment under the contract has been made or till the continuation of Defect liability period, whichever is later and for all other bidders, till the Contract has been awarded.

15.2. Should one or several provisions of this Pact turn out to be invalid; the remainder of this Pact remains valid. In this case, the parties will strive to come to an agreement to their original intentions.

INTEGRITY PACT

To

_____

_____

_____

NAME OF WORK : PROVISION OF CENTRAL SEWAGE TREATMENT PLANT AT AF STN SALUA

Dear Sir,

It is hereby declared that MES is committed to follow the principle of transparency, equity and competitiveness in public procurement.

The subject Notice Inviting Tender (NIT) is an invitation to offer made on the condition that the Bidder will sign the Integrity Pact, which is an integral part of tender/bid documents, failing which the tender/bidder will stand disqualified from the tendering process and the bid of the bidder would be summarily rejected.

This declaration shall form part and parcel of the Integrity Pact and signing of the same shall be deemed as acceptance and signing of the Integrity Pact on behalf of MES.

Yours faithfully,

for Chief Engineer (AF) Shillong Zone

CONTD….

INTEGRITY PACT

To,
The Chief Engineer
HQ Chief Engineer (AF) Shillong Zone
Military Engineer Services
Elephant Falls Camp
P.O. :Nonglyer
Shillong – 793009

NAME OF WORK : PROVISION OF CENTRAL SEWAGE TREATMENT PLANT AT AF STN SALUA

Dear Sir,

I/We acknowledge that MES is committed to follow the principles thereof as enumerated in the Integrity Pact enclosed with the tender/bid document.

I/We agree that the Notice Inviting Tender (NIT) is an invitation to offer made on the condition that I/We will sign the Integrity Pact, which is an integral part of tender document, failing which I/We will stand disqualified from the tendering process I/We acknowledge that THE MAKING OF THE BID SHALL BE REGARDED AS AN UNCONDITIONAL AND ABSOLUTE ACCEPTANCE of the conditions of the NIT.

I/We confirm acceptance and compliance with the Integrity Pact in letter and spirit and further agree that execution of the said Integrity Pact shall be separate and distinct from the main contract, which will come into existence when tender/bid is finally accepted by MES. I/We acknowledge and accept the validity of the Integrity Pact, which shall be in line with Para 15 of the enclosed Integrity Pact.

I/We acknowledge that in the event of my/our failure to sign and accept the Integrity Pact, while submitting the tender/bid, MES shall have unqualified, absolute and unfettered right to disqualify the tender/bidder and reject the tender/bid in accordance with terms and conditions of the tender/bid.

Yours faithfully,

(Duly authorized signatory of the Bidder)

CONTD...

Signature Not Verified
Digitally signed by Mary Germaine Marbaniang
Date: 2024.04.06 01:35:43 IST
Location: Ministry of Defence-MES